

Court Procedures

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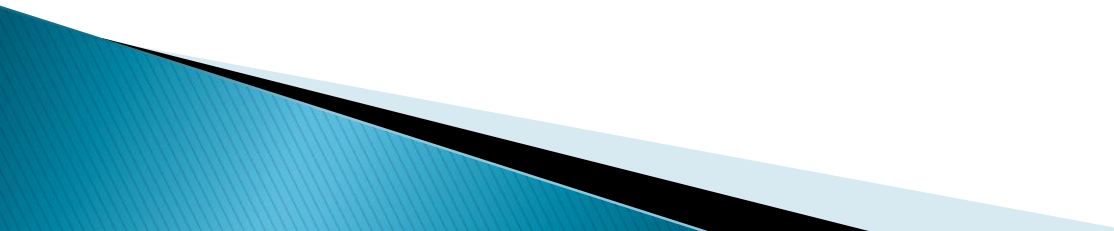
PREFATORY PREMISE

- ▶ “It is necessary to lay down laws for men; and for men to live according to law or else to differ in no respect from animals in the wildest state of nature” – PLATO
- ▶ There is no agreement as to what Justice is.
- ▶ “All are not just because they do no wrong
But he who will not wrong me when he may
He is truly just” – R.Cumberland

LAW UNBOUNDED

- ▶ Law incapable of any precise definition.
 - ▶ Not a fiction but a fact – mere theoretical morality is not the real content but pragmatic experience of law is the true spirit of law.
 - ▶ Transformation of ‘law in theory’ into ‘law in practice’ – the task of social administration and state governance.
 - ▶ Conceptual analysis – Distinction between Rule, Law, Principle
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General Principles of Law

- ▶ *–ignorantia juris non excusat –Ignorantia facti excusat*
 - ▶ Salus populi est suprema lex – regard for the public welfare is the highest law. – relation between individual and state – individual interest and welfare to yield before societal interest and welfare
 - ▶ Rule of Law
 - ▶ Separation of Powers
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Cont....

Principles of Natural Justice

- ▶ Audi Alteram Partem (hear the other side)
- ▶ Nemo debet esse judex in causa sua. (no man can be a judge in his own cause)– Rule against Bias
- ▶ State Liability in Torts & Contract–Vicarious liability
- ▶ *Ubi jus ibi remedium*(*Where there is a Right There is a Remedy*)
- ▶ *Volenti non fit injuria* (damage suffered by consent is not a cause of action)
- ▶ *Res ipsa loquitur* (the thing speaks for itself)

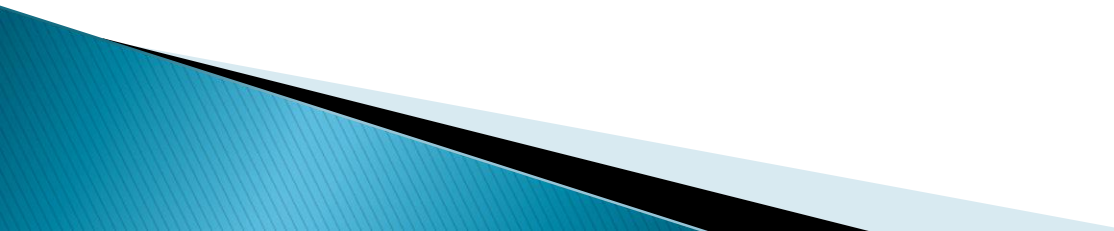
Cont...

- ▶ *Actus non facit reum nisi mens sit rea*
(the intent and the act both concur to constitute the crime)
- ▶ **ACTIO PERSONALIS MORITUR CUM PERSONA**
(The action of the person dies with him)
- *Nemo debet bis vexari pro una et eadem causa*
(it is a rule of law that a man shall not be twice vexed for one and the same)–principle of Double Jeopardy– Res judicata
- **“FIAT JUASTITIA RUAT COELUM”** — let justice be done, though the heaven should fall.

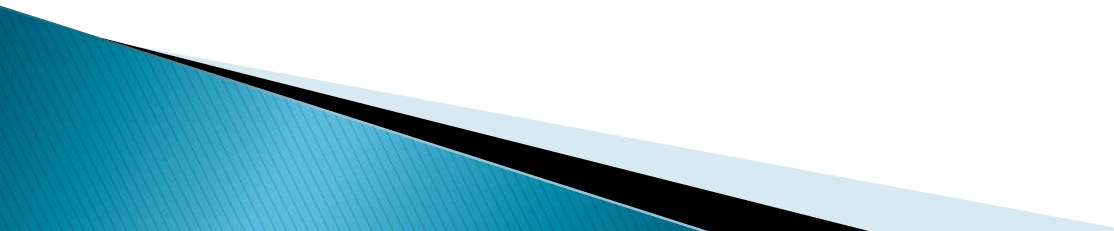
FACETS OF LAW

- ▶ Classification of law is not scientific – only a technique of convenience and expediency in understanding the concept of law. Some norms adopted for differentiation –
 - ▶ Codified & uncoded (structural format)
 - ▶ International & municipal – (territorial application)
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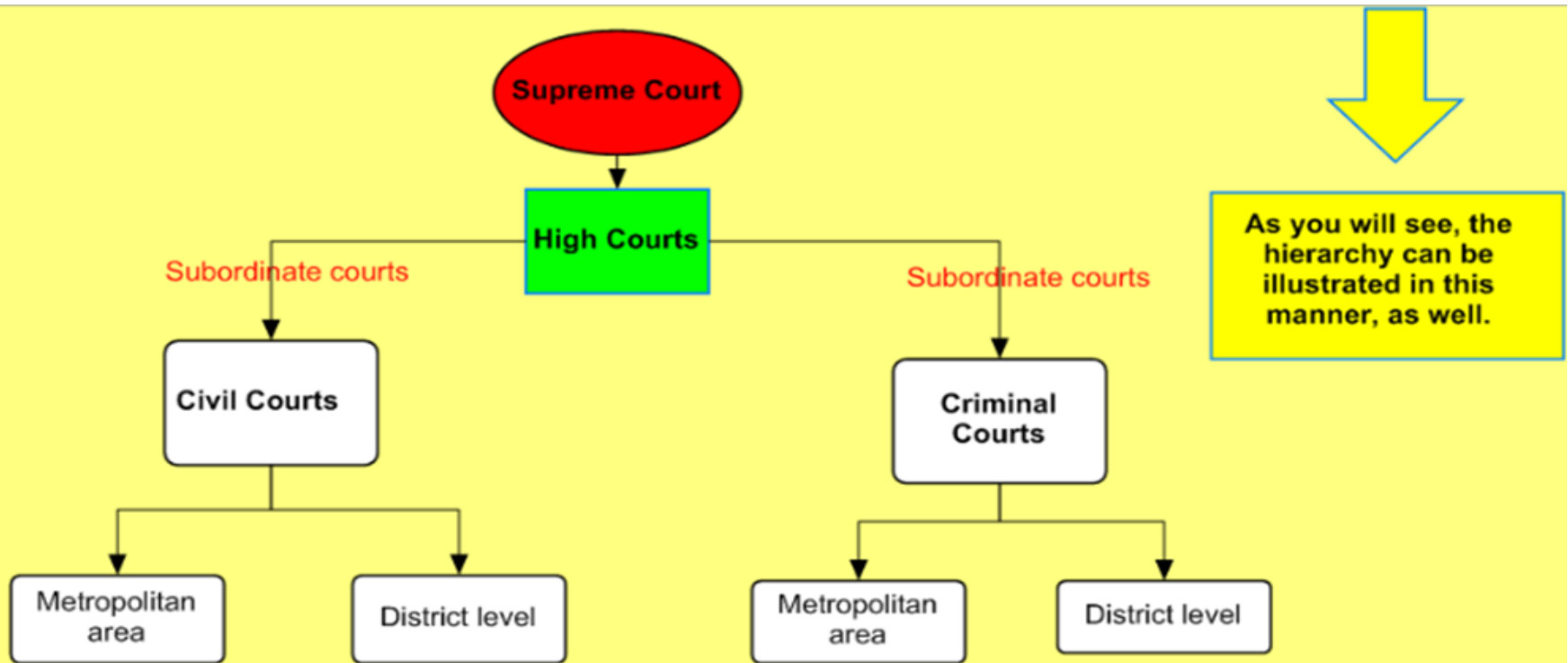
- ▶ Substantive and procedural – (Functional)
 - ▶ Civil and criminal – (nature)
 - ▶ Private and Public – (objective test)
 - ▶ Supreme/organic and ordinary – (status)
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Sources of Law

- ▶ **Legislation** – Constitution, Statutes, Rules etc
 - ▶ **Custom**– practice (s) passed on by one generation to the next– **ancient**, **certain**, **uniform**, **not opposed to public policy** & continuous
 - ▶ **Precedent**– authoritative & persuasive– Ratio decidendi & Obiter dicta
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System of Courts in India

- ▶ At National level – Supreme Court of India
- ▶ At State level – High Court
- ▶ At District and Subordinate level – Subordinate Courts (Civil and Criminal



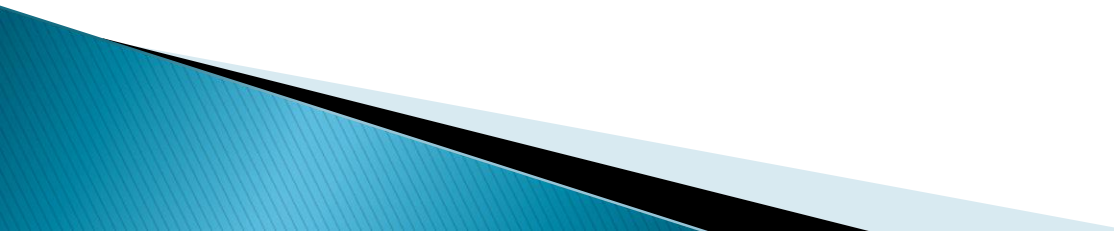
In the earlier scenario, the Flowchart is illustrating the subordinate courts by Geography, i.e. Metropolitan area and District level, unlike in the present scenario, where the division is initially by Civil and Criminal Courts and then by Geography, i.e. Metropolitan area and District level courts.

Jurisdiction of the Supreme Court

- ▶ **Court of Record.** Has power to punish for contempt. (Art-129)
- ▶ **Original Jurisdiction.** (Art-131)
- ▶ **Highest Court of Appeal** (Articles-132,133,134 & 136)
- ▶ **Writ jurisdiction.**(Art-32)
- ▶ **Advisory Jurisdiction.**(Art-143)
- ▶ Law declared by the Supreme Court **binding on all Courts in India.**(Ar-.141)

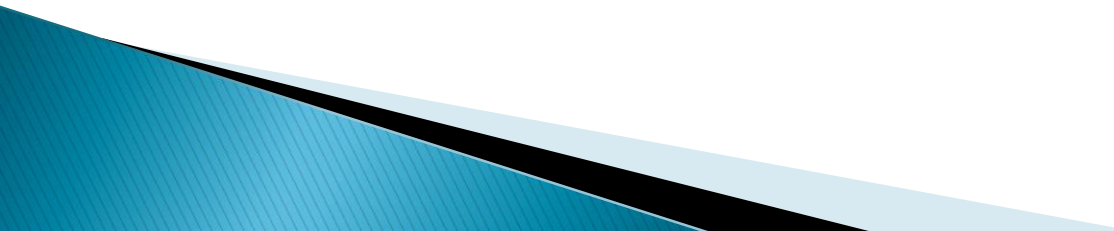
Appellate Jurisdiction–Art1 32

Appeal shall lie to SC from–

- ▶ From any Judgment, Decree, or final order of a High Court
 - ▶ Whether Civil, Criminal or other proceeding
 - ▶ Involving a substantial question of Law as to the interpretation of Constitution
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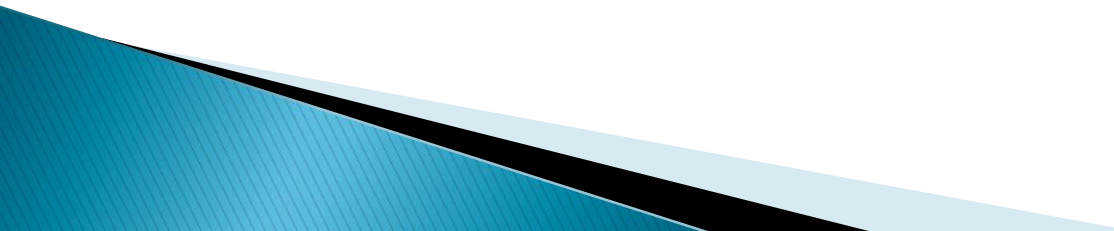
Appellate Jurisdiction in Civil matters–Art133

Appeal shall lie to SC from–

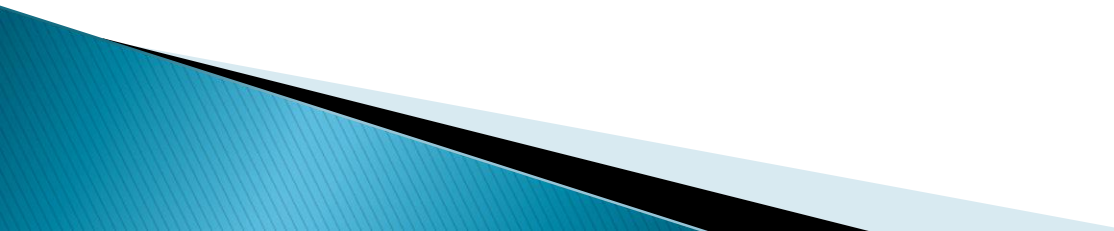
- ▶ From any Judgment, Decree, or final order in a civil proceeding of a High Court
 - ▶ Involving substantial question of law of general importance
 - ▶ Involving a substantial question of Law as to the interpretation of Constitution has been wrongly decided.
- 

Appellate jurisdiction in criminal matters–Art–134

An appeal shall lie to SC–

- ▶ From any judgment, final order or sentence in a criminal proceeding of a High Court if the HC–
 - ▶ Has reversed an order of an acquittal and sentenced the accused
 - ▶ Has withdrawn for trial before itself and sentenced the accused to Death
- 

Jurisdiction of the High Court

- ▶ **Court of Record**. Has power to punish for contempt. (Art-215)
 - ▶ in civil and criminal matters in the case of some High Courts.
 - ▶ **Appellate jurisdiction** in respect of criminal and civil cases decided by Subordinate courts.
 - ▶ **Revisional Jurisdiction** conferred under the Civil Procedure Code and Criminal Procedure Code.
 - ▶ **Writ jurisdiction**. (Art-226)
 - ▶ **Administrative Jurisdiction** over subordinate courts.
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Civil Courts subordinate to the High Court

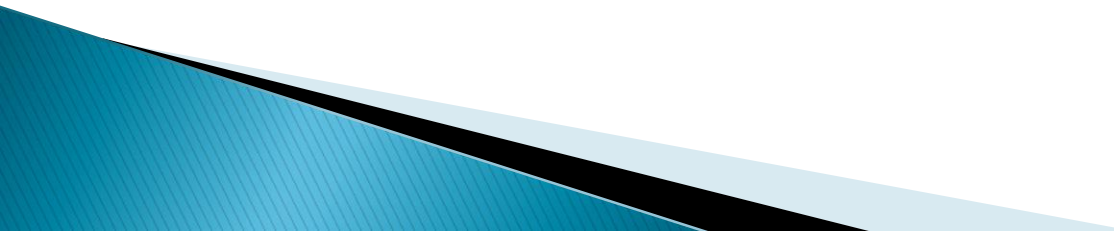
In Metros

- ▣ First Grade
Chief Judge and
Additional Chief
Judge
- ▣ Second Grade
Assistant Chief Judge
or Senior Civil Judge
- ▣ Third Grade
Munsif or
Junior Civil Judge

In Districts

- ▣ First Grade
District Judge and
Additional District
Judge
- ▣ Second Grade
Assistant District
Judge or Senior Civil
Judge
- ▣ Third Grade
Munsif or
Junior Civil Judge

Civil Procedure

- ▶ Code of Civil Procedure 1908 [C P C]
 - ▶ CPC Civil Courts, Its powers, Jurisdiction, Suits[plaint & written statement], Interim Orders, Judgment & Decree, Execution of Decree etc
 - ▶ CIVIL COURTS
 - ▶ Munsiff Court – Up to Rs.1 lac
 - ▶ Sub Court – Above Rs.1 lac
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Criminal Courts Subordinate to the High Court

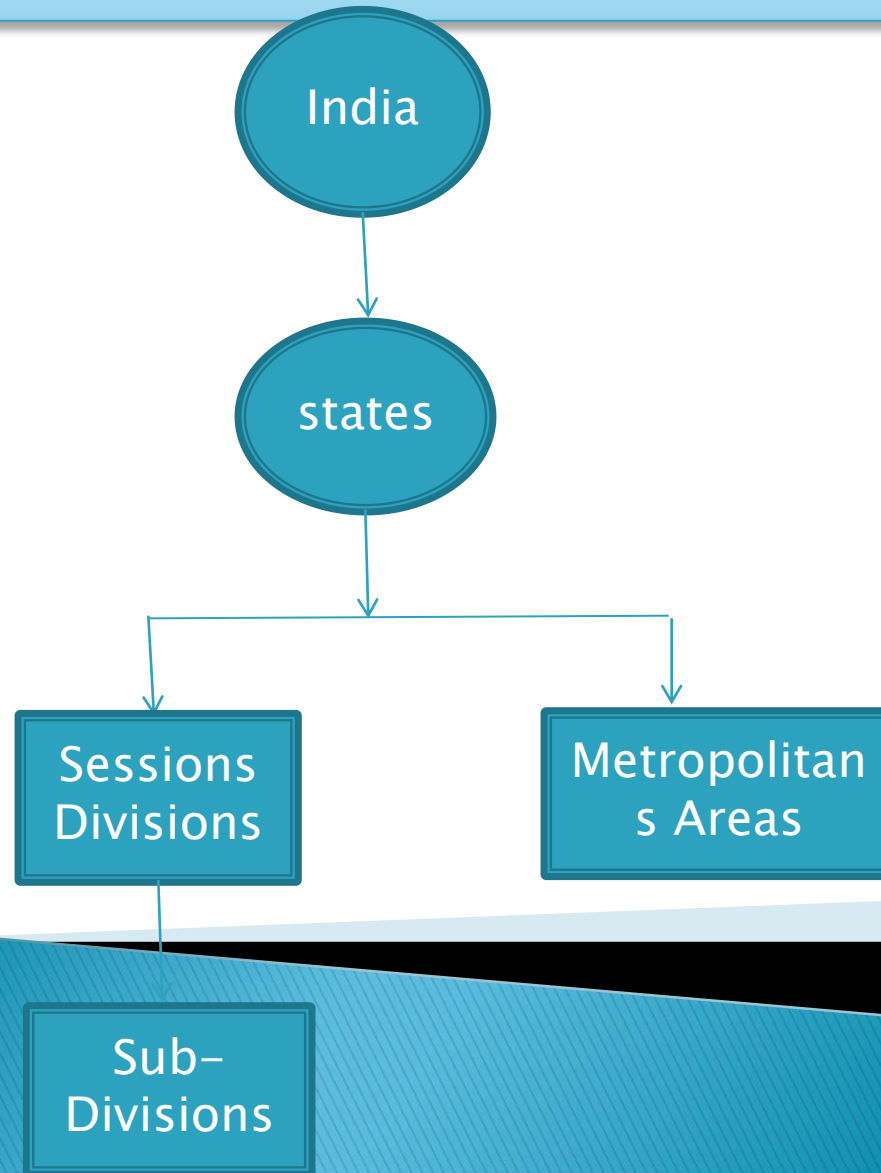
In Metropolitan Cities

- ▣ **Sessions Court**
(Sessions Judge, Addl. Sessions Judges and Asst. Sessions Judges)
- ▣ **Chief Metropolitan Magistrate's Court**
- ▣ **Metropolitan Magistrates' Courts**

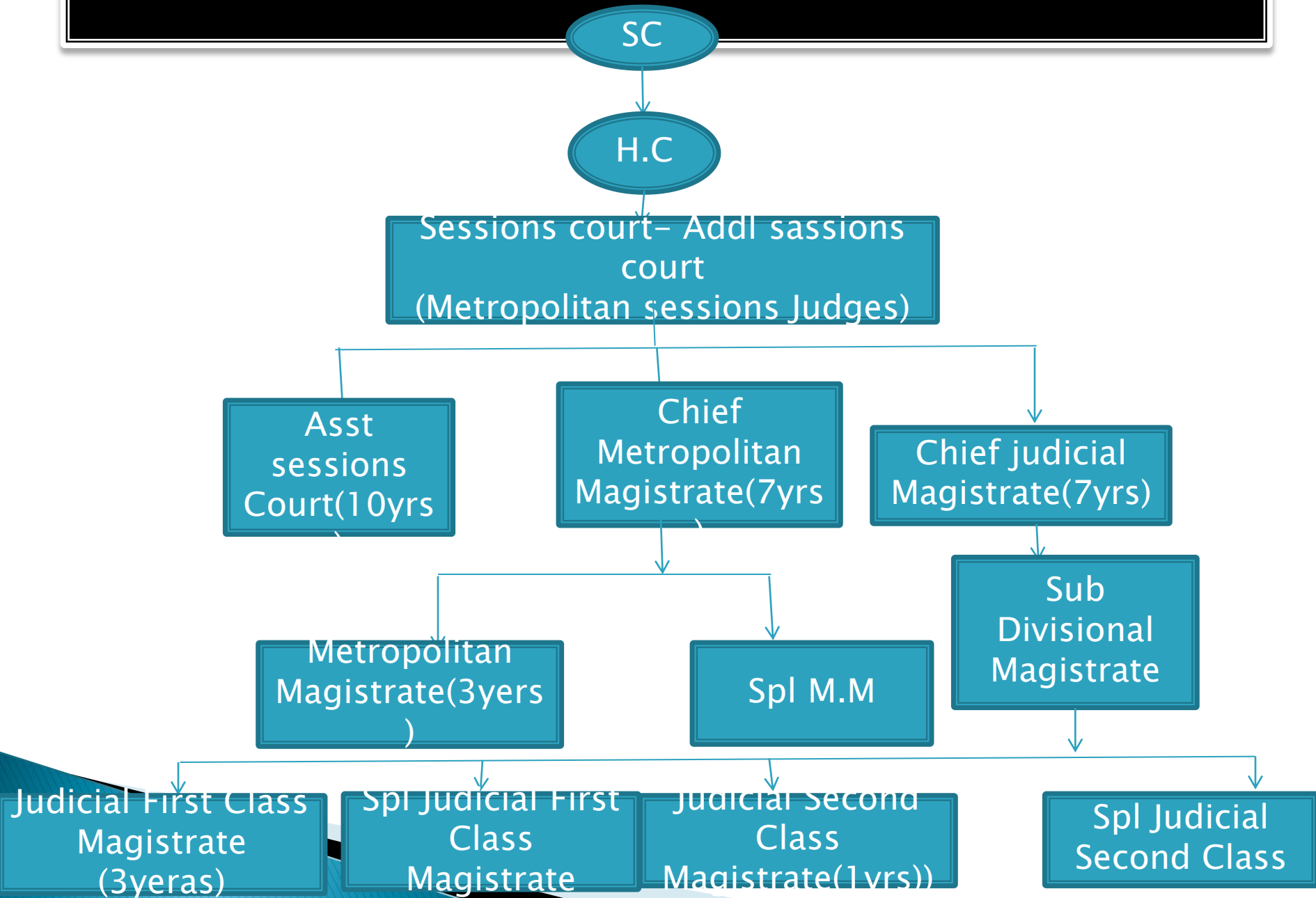
In Districts

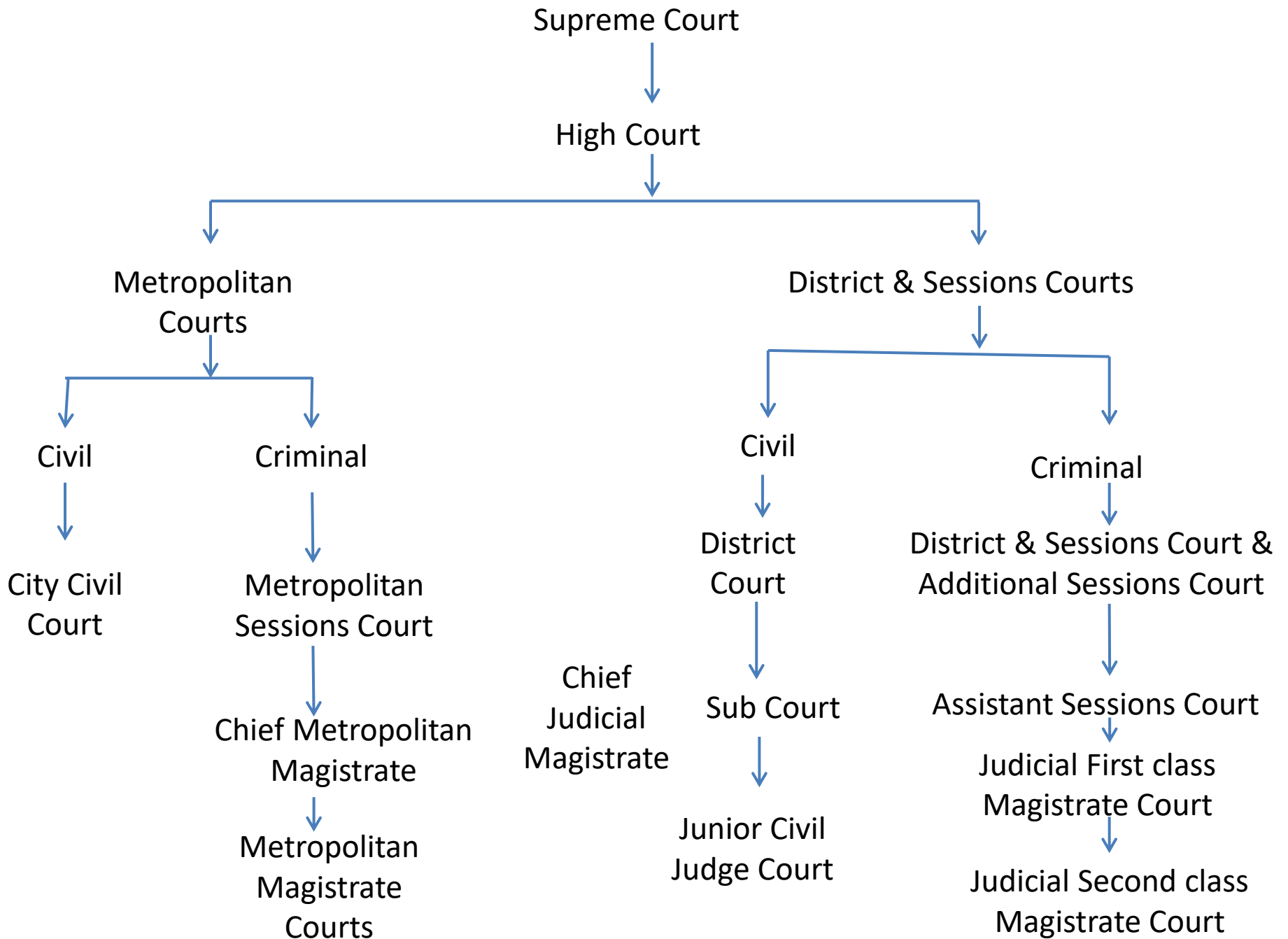
- ▣ **Sessions Court**
(Sessions Judge, Addl. Sessions Judges and Asst. Sessions Judges)
- ▣ **Chief Judicial Magistrate's Court**
- ▣ **Judicial Magistrates of First Class.**
- ▣ **Judicial Magistrates of Second Class.**

TERRITORIAL DIVISION

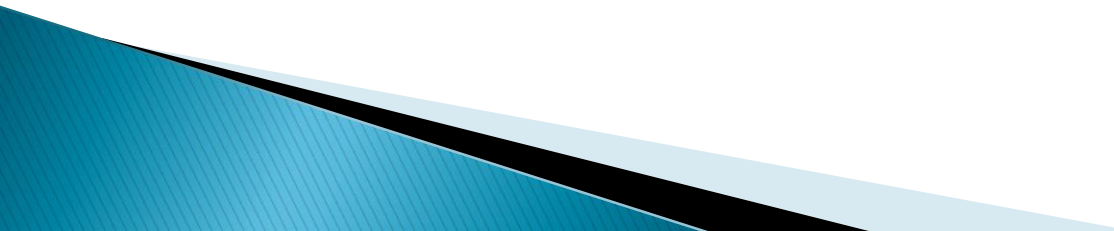


Hierarchy of criminal Courts





Cr PC DEALS WITH

- ▶ FIR ,
 - ▶ INVESTIGATION ,
 - ▶ ARREST,
 - ▶ SEARCH,
 - ▶ BAIL,
 - ▶ TRIAL,
 - ▶ JUDGEMENT,
 - ▶ APPEAL etc
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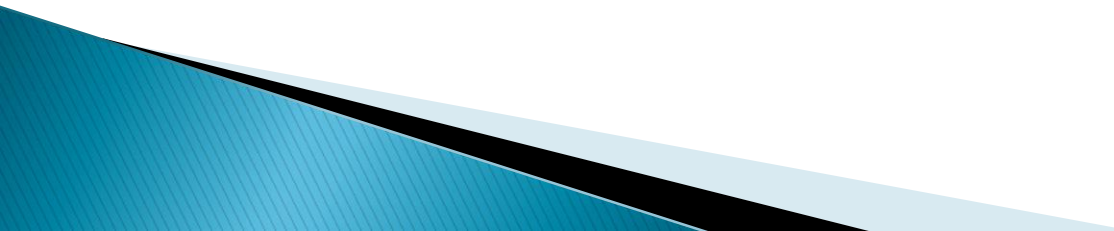
Parties in Civil Case

Parties in Original Suit (O S)

- ▶ Plaintiff/Plaintiffs = who files Plaint
- ▶ Defendant/Defendants = who has to file Written Statement

- ▶ Process issued by Courts
- ▶ **Summons**–issued to appear before the court in person or through advocate to answer a question/claim or produce document etc.
- ▶ **Warrant**–an order to arrest/ produce/search etc
- ▶ **Notice**– to intimate the institution of a petition, proceedings or its date of hearing etc

Injunction / stay order

- ▶ **Prohibitory injunction**/stay order is issued to restrain a person or authority from doing any act or thing etc
 - ▶ **Mandatory injunction** is issued ordering a person or authority to do any act or thing
 - ▶ **Status quo** is also issued to maintain the position as of now
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SOME IMPORTANT LEGAL TERMS

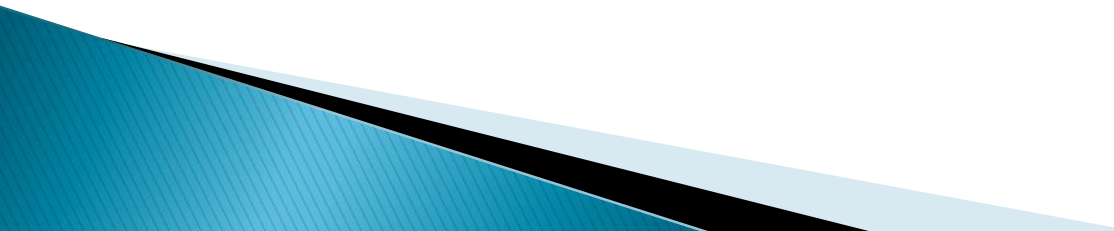
- ❖ Admit :
- ❖ Averments:
- ❖ Allegations:
- ❖ Tenable
- ❖ Sustainable
- ❖ Maintainable With out jurisdiction
- ❖ Barred by limitation
- ❖ Hit by res judicata.

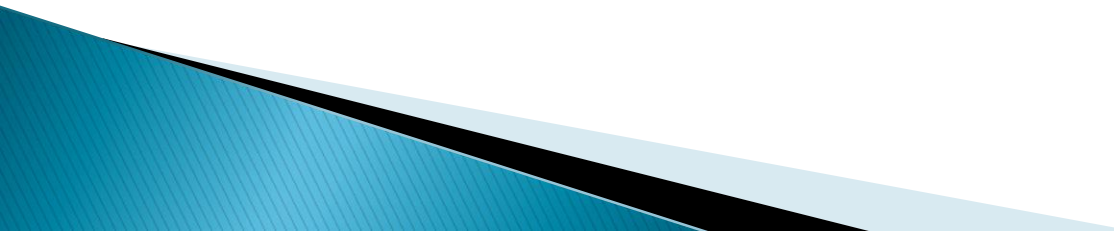
- ❖ Misconstrue
- ❖ Misleading
- ❖ Misconceived
- ❖ Deny
- ❖ Dispute
- ❖ Dismiss
- ❖ Allow
- ❖ Devoid of truth and merits.
- ❖ Infructuous
- ❖ Premature

- ❖ Vacate
- ❖ Extend
- ❖ Stay
- ❖ Suspend
- ❖ Status quo
- ❖ In - limini.
- ❖ Question of fact
- ❖ Question of law
- ❖ Alternative remedies
- ❖ Suppression of facts
- ❖ False deposition – perjury
- ❖ Caveat
- ❖ Writ of Mandamus
- ❖ Writ of certiorari

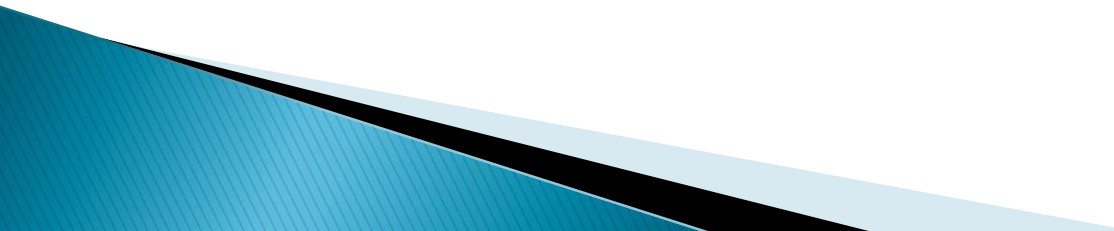
Section 80 of CPC

No suit shall be instituted against Govt/Public officer in his official capacity until the expiration of two months notice. But with the leave of the court urgent suits can be filed, still any relief whether interim or not can be given after notice only.



- ▶ **Judgment** – means the statement given by the Judge on the grounds of a decree
 - ▶ **Decree** – means the formal expression of an adjudication which determines the rights of the parties with regard to the matters in controversy in the suit
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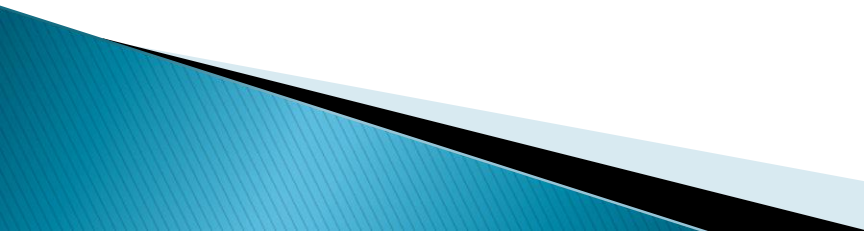
Regular First Appeal in Civil

- ▶ To Dist. Court against Decree up to Rs.1 Lac
 - ▶ To High Court above Rs.1 lac
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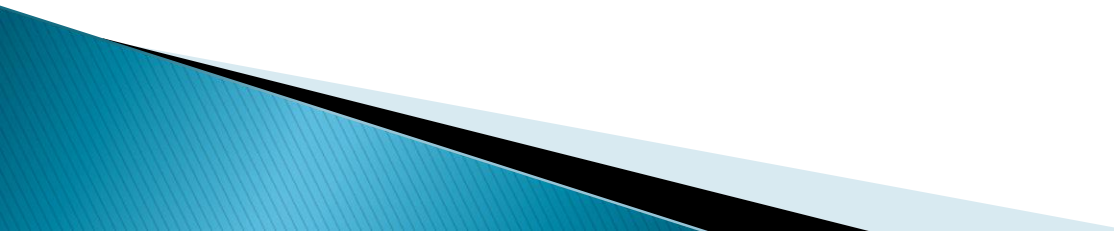
Second Appeal

- ▶ Second Appeal to the High Court in case of substantial question of law exists in the Decree passed by a lower Appellate Court OR from an Ex parte Appellate decree

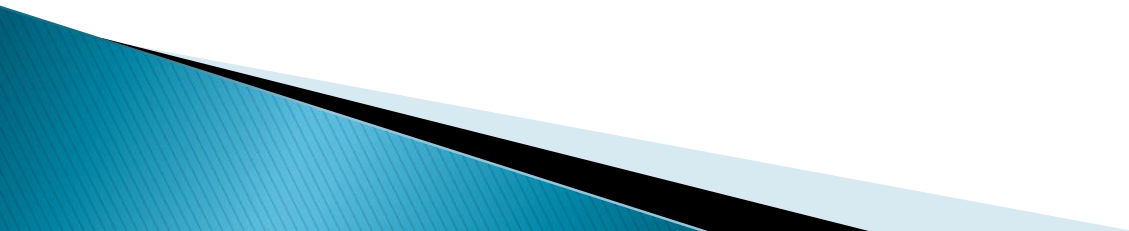
Caveat

- ▶ It is filed in anticipation of an order (injunction etc.) which may be sought against the caveator
 - ▶ Court will inform the person against whom caveat is filed regarding it
 - ▶ It will protect the caveator against ex parte order (injunction etc) which may be passed against him
 - ▶ Caveat will have effect up to 90 days
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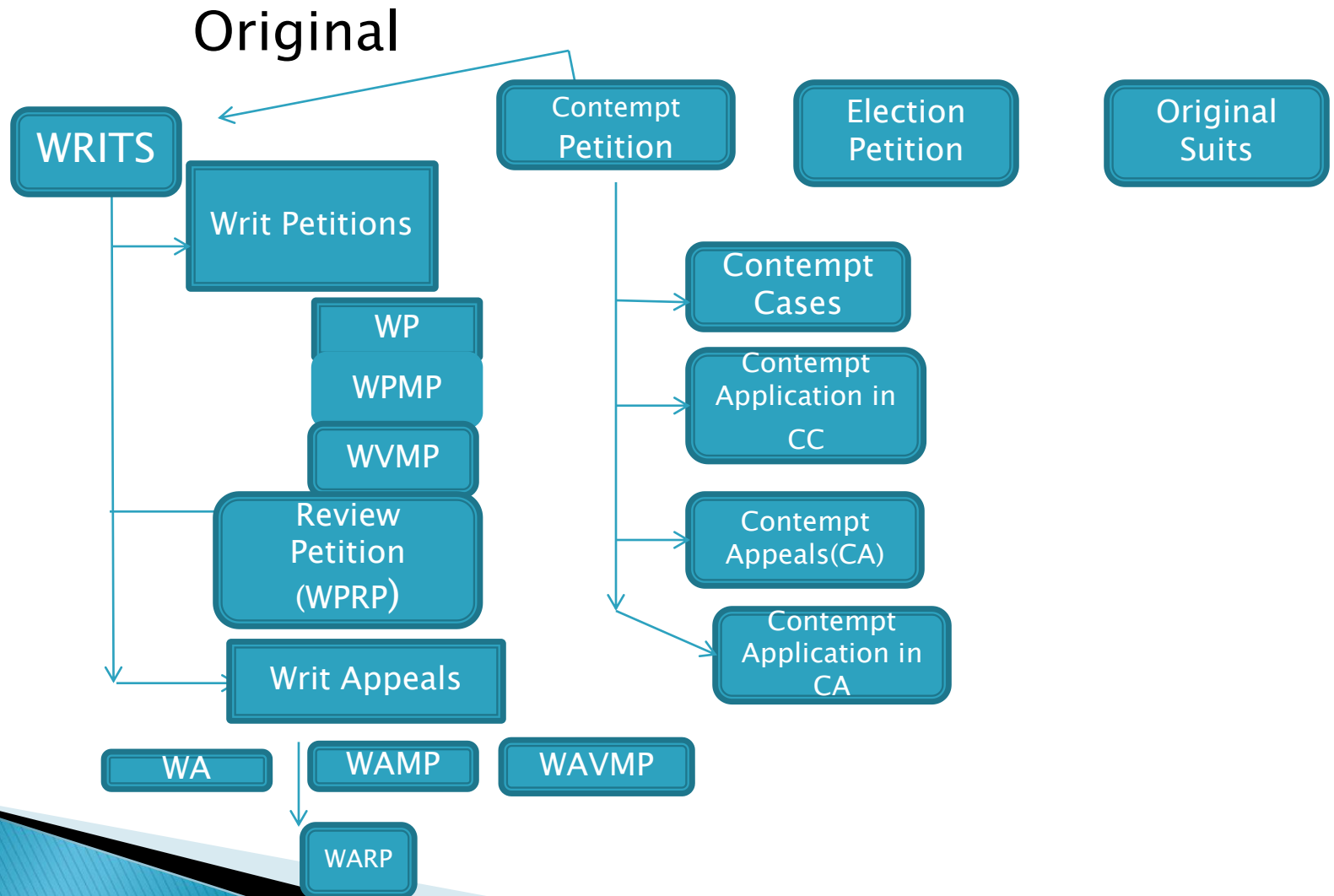
WRITS Issued by Supreme court under Art.32 and High Courts under Art.226 of the Constitution of India. The writs are

- 1.Habeas Corpus
 - 2.Mandamus
 - 3.Prohibition
 - 4.Quo warranto
 - 5.Certiorary
- 

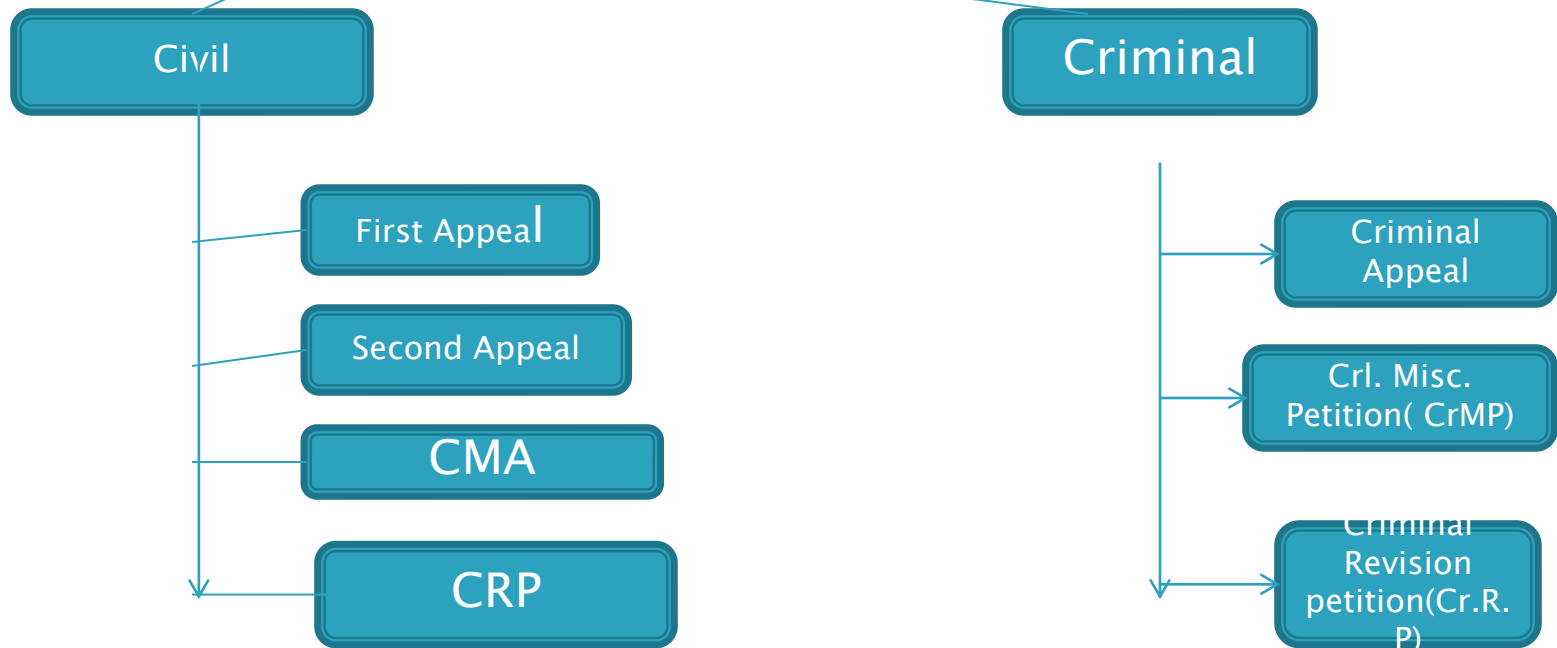
The writs are issued by the apex court and the High Courts for the enforcement of Fundamental Rights guaranteed under the Constitution and any other purpose also against any person or authority/ Government



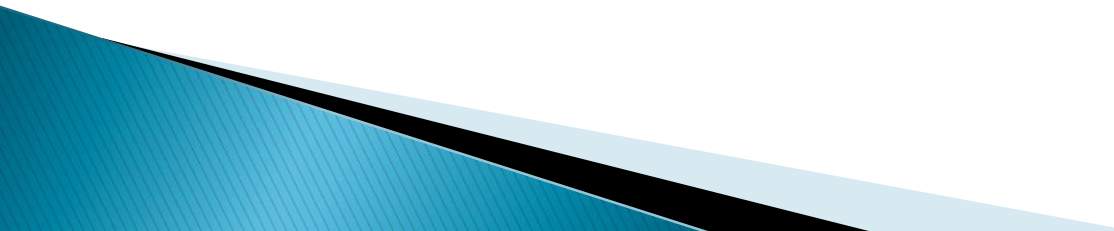
High Court Jurisdiction



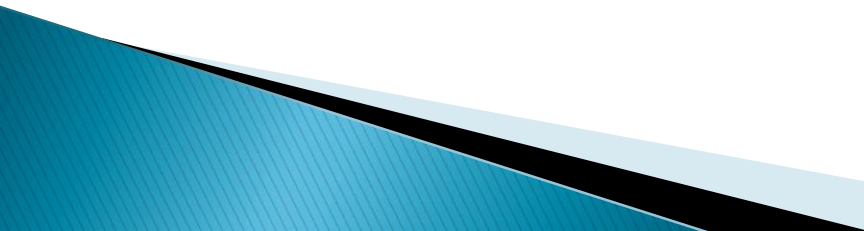
► Appellate Jurisdiction



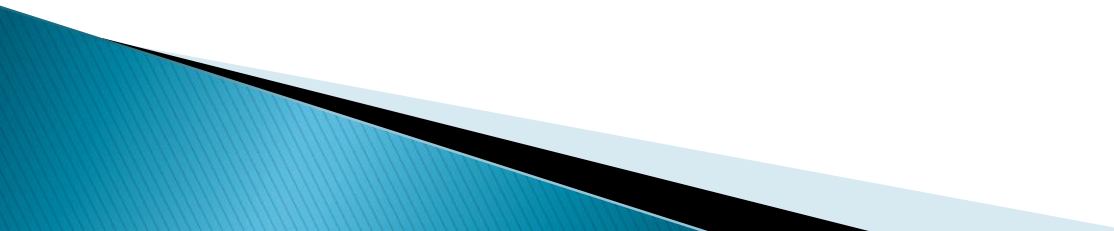
Petitions etc

- ▶ Writ petition –WP(C), WP(crl) in High court and Supreme court only
 - ▶ Original Petition– OP
 - ▶ Regular First Appeal–RFA
 - ▶ Interlocutory Applications–IA
 - ▶ Civil miscellaneous petitions–CMP
 - ▶ Criminal Miscellaneous petitions–Crl MP
- 

Govt Advocates

- ▶ Dist Govt Pleaders in Dist centers
 - ▶ Addl Govt Pleaders in Addl Dist Courts and Sub court centers
 - ▶ Pleaders in Munsiffs Courts(Advocate doing Govt works)
 - ▶ Special Govt Pleaders and Pub:Prosecutors
 - ▶ Standing Counsels in the Supreme Court
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Govt Advocates in High Court

- ▶ Advocate General(Art 165 of the Con:)
 - ▶ Addl Advocate General
 - ▶ Senior Govt Pleaders and Govt Pleaders
 - ▶ Public Prosecutors
- 

Typical Flow Process of Legal Cases in Government Department

A. Initiation Process

- ▶ Aggrieved party files Writ Petition
- ▶ Adjournment(s) of the Case, if any

B. Administrative Process

- ▶ Department receives affidavit and section staff prepare para-wise remarks
- ▶ Para-wise remarks are sent to Government Pleader (GP) for examination

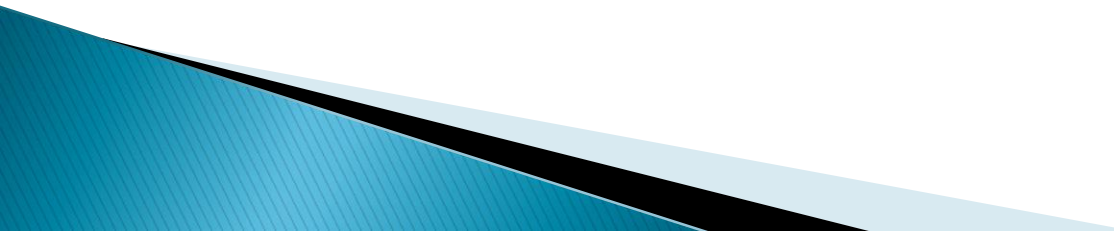
C. Judicial Process

- ▶ GP files CA in the Court/Administrative Tribunal
- ▶ Court requests responses from the Respondents (Department/ Government)
- ▶ Section Staff of Department prepare Counter Affidavit (CA) in a prescribed format and send it to GP for filing in Court
- ▶ Court hearing of the Case
- ▶ Final hearing and judgment of the Case with judgment copy sent to all

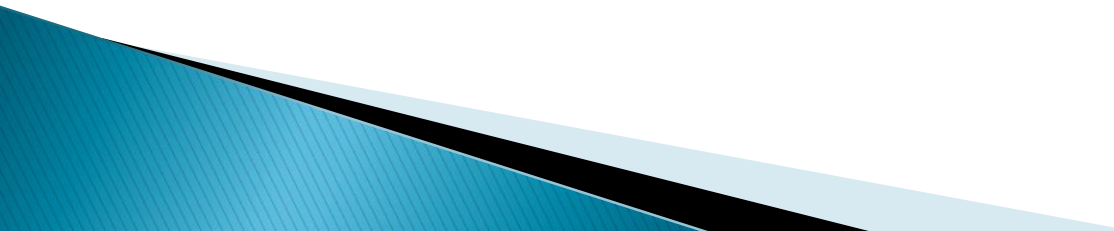
Department decision

- a) Implement the decision by passing necessary orders
- b) Appeal against the decision in higher court/ authority

PREPARATION OF STATEMENT OF FACTS to defend Govt cases

- ▶ Points to be kept in mind
 - ▶ Give a brief history of the case in beginning
 - ▶ Include only relevant facts
 - ▶ Legal questions to be answered by law officer/GP
 - ▶ Answer para by para and ground by ground without omissions
- 

Points to be kept (contd..)

- Every averment allegation must be answered
 - Clubbing of paras to be avoided
 - Cross reference of paras can be made
 - Costs to be claimed in relevant cases particularly in frivolous and vexatious litigations
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IMPOTANT ASPECTS TO BE EXAMINED IN COURT CASES AT THE TIME OF PREPARATION OF COUNTER AFFDAVIT

1. Whether the OA/WP is maintainable under Section 19 of Administrative Tribunals Act or under Article 226 of the Constitution of India.
2. Whether the Administrative Tribunal /High Court has jurisdiction to try the case under Section 14 of AT Act 1985/Article 226 of COI.
3. Whether the subject matter of the OA/WP is well within the limitation under Section 21 of Administrative Tribunal Act, 1985 or Section 109 of CPC for filing W.P in the High Court.
4. Whether the applicant / petitioner has locus standi to seek the relief prayed for in the O.A/W.P(LOCUS STANDI : The right of a party to an action to appear and be Heard on the questions of any Court/ Tribunal)
5. Whether the relief prayed for is hit by resjudicata or not (RESJUDICATA: A matter or thing which has already been adjudicated upon.)

6. Whether alternative remedies, if any, are exhausted.
7. Whether multiple remedies are sought for in the OA/WP.
8. Whether any O.A./W.P. is pending on the same subject matter seeking same relief .
9. Whether the OA/ W.P. is premature.
10. Whether the relief prayed for is ultra vires (Beyond the scope, power or authority of any Company, Corporation or statutory body and to the provisions of constitution or any other provision of law).
11. Whether the main and interim relief are one and the same.

➤on receipt of OA/W.P. the concerned officer should prepare para-wise remarks and the same should be sent to the Government pleader along with the connected records.

➤The Government pleader will approve the parawise remarks and return the same to the concerned officer

➤On receipt of approved parawise remarks , the same should be got fair typed on one side of thick white paper in double line spacing with 1 ½ margin on all sides and duly signed and sworn at the end of each page by both the attesting and swearing officers with their designation stamps and send it to Government pleader with five extra copies along with original for filing the in AT/High Court.

➤Fair counter should be accompanied by all the attested copies of documents referred to in the counter affidavit.

TIME FOR FILING COUNTER AFFIDAVIT

- High court --- six months (R12 (2) of HC W Progs rules)
- AT --- 30 days from the date of receipt of notice (Rule 12) .
- All the respondents included either in a O.A or a W.P. have to file counters. Even if there is no claim of the applicant/ petitioner pending with a respondent, he has to state the same by filing a counter in the AT or the High Court.
- In case the employees dies, the LR's should be brought on record within 30 days of the death otherwise the OA will abate. In case of W.P. LR's should be brought on record within 6 months from the date of death, otherwise the OA will abate

ACTION TO BE TAKEN BY THE RESPONDENTS WHEN THE A.T./HIGH COURT PASSES AN INTERIM ORDER

- Sometimes the Hon'd'le A.T/High Court may issue an interim order in a particular O.A./WP. (Sec. 24/Section 151 CPC)
- When there is interim order, two courses are open (1) to implement the interim order (2) to file detailed counter affidavit along with praying the Hon'd'le A.T/High court to vacate the interim orders This petition is called *Vacation Miscellaneous Application (V.M.A)* in *O.A. No..... In W.V.M.P. (Writ Vacation Miscellaneous Petition) in WP* or for modification of interim order in fitness of the circumstances. This will be signed by the concerned G.P. in the A.T.
- Other wise the contempt proceedings follow

- When final orders are received and in case there is apparent error such not considering the facts/legal position/ counter affidavit filed, then Review under Rule 19 has to be filed within 30 days from the date of final order.

In case, the time of 30 days is lapsed, then WP. against the order of AT has to be filed within 90 days after taking the opinion of the Government Pleader.

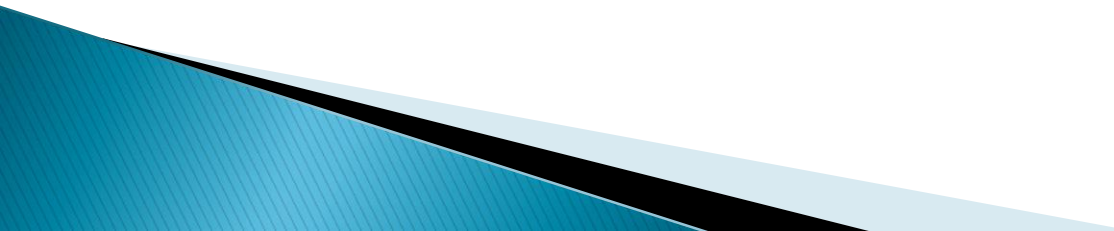
- In case of W.P. SLP in Supreme court has to be filed after taking the opinion of the Government Pleader and in case of policy matter, the permission of the Government is to be obtained.

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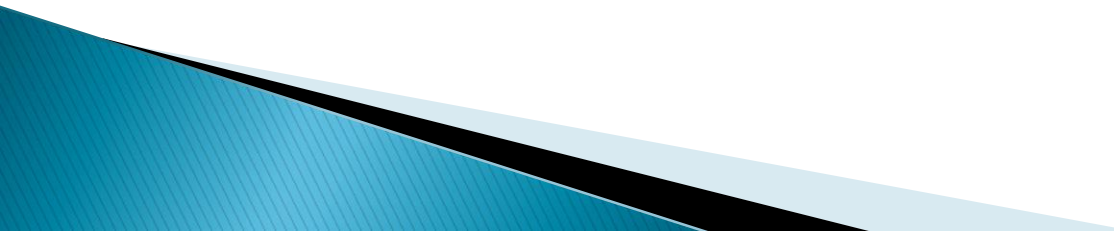
In case the order of the AT/HC is not implemented within the time stipulated, if any, and in case no time is stipulated, within one month, the aggrieved party can initiate contempt proceedings under the provisions of Contempt of Courts Act.

In case, the final orders cannot be implemented within the time stipulated, Miscellaneous application or WPMP in case of W.P. are to be filed seeking extension of time for implementation duly explaining the reasons therefor.

- ▶ **Follow up action**

- ▶ Pursue the case with GP
 - ▶ Request GP to get the stay/injunction vacated
 - ▶ Ensure copy application in time since delay may affect right of appeal
 - ▶ Ensure execution of decree/orders
 - ▶ If there is no appeal comply with the order/ judgment in time/avoid attachment
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Duties of Law Officers

- ▶ Advise Government
 - ▶ Conduct all miscellaneous legal business
 - ▶ Receive notice in cases as an agent of Govt
 - ▶ Appear for Govt in all cases
 - ▶ Conduct prosecution/ appeal in courts
 - ▶ Obtain certified copy of orders/judgements and send to Govt with recommendations
 - ▶ See that the decree amounts are paid in time, etc
- 

❖ Generally in Government offices the following Types of cases are filed in various legal fora.

Original Application (OA) (Applicant/Respondent)	---	A.P.A.T.
Writ Petition (W.P High Court Petitioner/Respondent)	---	
Complaint	---	Lokayukta & Upa Lok Ayukata. (Complainant/Public Servant)
Original Suits (O.S.)	---	Civil Courts (Plaintiff/Defendant)

**WHAT QUESTION DO YOU HAVE
?**